

HOUSE No. 273

The Commonwealth of Massachusetts

PRESENTED BY:

Samantha Montañó

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to a maltreatment coding system.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Samantha Montañó</i>	<i>15th Suffolk</i>	<i>1/16/2025</i>

HOUSE No. 273

By Representative Montañó of Boston, a petition (accompanied by bill, House, No. 273) of Samantha Montañó relative to the creation of a maltreatment coding system. Children, Families and Persons with Disabilities.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to a maltreatment coding system.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 51B of Chapter 119 of the General Laws, as so appearing in the
2 2022 Official Edition, is hereby amended by inserting after subsection (a) the following
3 paragraphs:-

4 (1) The department shall create and utilize a comprehensive maltreatment coding system
5 that provides a standardized method for categorizing instances of abuse and neglect by severity
6 for families during the initial investigation phase.

7 (2) Categories should include, but are not limited to: (i) parental abuse; (ii) imminent risk
8 of serious harm (iii) labor trafficking; (iv) emotional abuse; (v) neglect; (vi) physical abuse; (vii)
9 sexual abuse; (viii) exploitation

10 (3) The coding system should further include coding based on abuse related to sexual
11 orientation, gender identity, and expression in an effort to provide family preservation and

12 acceptance education; as well as racial discrimination for youth who are not in the care of their
13 family of origin.

14 (4) The coding system should be applied upon opening a case and used in conjunction
15 with existing software to assist in the assessment and continued evaluation of ongoing cases.

16 (5) The department shall review the categories of the system at least every two years and
17 update as needed.